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Case Number: 26CHCV00793 Hearing Date: July 16, 2026 Dept: F43

Dept. F43

Hearing Date: 07-16-26

Case # 26CHCV00793, Lopez Valdez

v. Sanabria, et al.

Trial Date: None set.

MOTION FOR SUMMARY

JUDGMENT

MOVING PARTY: Plaintiff Jorge Benito Lopez Valdez

RESPONDING PARTY: Defendants Claudia Marina Sanabria, Rebeca

Espino, and Casanova Espino

RELIEF REQUESTED

Order granting summary judgment on the unlawful
detainer complaint for plaintiff against defendants Claudia Marina Sanabria,
Rebeca Espino, and Casanova Espino.

RULING: Motion is granted in part for Plaintiff
against defendant Claudia Espino Sanabria and denied in part as to defendants
Rebecca Espino and Casanova Espino.

SUMMARY OF ACTION

Plaintiff Jorge Benito Lopez Valdez

(Plaintiff) filed this unlawful detainer action against defendants Claudia

Marina Sanabria aka Claudia Marina Sanabria Espino, Rebecca Espino, and

Casanova Espino on February 24, 2026.[1] Plaintiff owns real property located at 20329

Julia Lane, Santa Clarita, CA 91350 (the Premises), a single-family home. (Compl. ¶ 1.)

Plaintiff allowed Defendants to reside at the Premises rent-free until

discovery drug paraphernalia on January 7, 2026. Plaintiff served a Three-Day Notice to Quit

on February 6, 2026, but Defendants failed to vacate the premises by February

11, 2026. Plaintiff seeks \$600 statutory

damages pursuant to Code of Civil Procedure section 1174, subdivision (b). (Id. ¶ 13.) Plaintiff served each Defendant with the summons

and complaint on February 28, 2026.

On March 11, 2026, defendants Claudia and

Rebecca filed answers, admitting in part that they remain in possession of the

Premises. (3/11/26 Answers at p. 1, §

2(b)(1)(b).) Casanova filed an answer on

March 12, 2026, asserting he vacated the Premises on January 17, 2026. (3/12/26 Answer at p. 3, § 4(a).) Defendants are self-represented.

On July 1, 2026, Plaintiff filed the instant

motion for summary judgment on his unlawful detainer complaint. Defendant Claudia filed an opposing

declaration on July 8, 2026, and defendants Casanova and Rebecca filed opposing

declarations on July 10, 2026.

SUMMARY OF ARGUMENTS

Plaintiff asserts each defendant has admitted

Plaintiff owns the Premises, Defendants were served with a valid three-day

notice to quit for nuisance and possession of illegal substances, and

Defendants remained and continue to remain in possession after the expiration

of the three-day notice to quit.

Defendants deny all allegations of the complaint based on lack of

sufficient information, claim Plaintiff did not serve forms that are not

required, and do not assert any facts to support their affirmative

defenses. Defendants' reliance on the

Tenant Protection Act of 2019 is misplaced because the Premises was built in

2012 and the statute excludes properties built less than 15 years ago. Defendants' claim of discrimination based on

"marital status" lacks merit because Defendants are Plaintiff's only tenants

and cannot allege disparate or unequal treatment. Defendant's retaliation claim fails because Defendants do not allege their exercise of any protected legal activity as a result of which they were subjected to retaliation. Finally, Defendants' claim of rent reduction due to habitability based on "inadequate locks/security" fails because, aside from being false, Defendants do not pay rent, never notified Plaintiff of any such issue, and are not entitled to a reduction.

Defendants did not file formal opposition briefs.

ADMISSIBLE EVIDENCE

Plaintiff presents the following admissible evidence: Declaration of plaintiff Jorge Benito Lopez Valdez; Grant Deed showing Plaintiff purchase the Premises in February of 2018; a copy of the Certificate of Occupancy for the Premises Plaintiff obtained from the City of Santa Clarita, issued on February 12, 2012; cellphone photographs taken by Plaintiff on January 7, 2026, showing Drug Paraphernalia at the Premises; January 7, 2026, text messages between Plaintiff and defendant Claudia about the Drug Paraphernalia; a copy of defendant Claudia's real estate license with the State of California's Department of Real Estate as of April 22, 2026; Declaration of Sandra Khalili; Three-Day Notice to Quit; proofs of service of the Notice to Quit; verified Answer of defendant Claudia; verified Answer for defendant Rebecca; and verified Answer for defendant Casanova. (Declaration of Jorge Benito Lopez Valdez, Exhs. 1-5; Declaration of Sandra Khalili, Exhs. 6-10.)

Defendant Claudia Espino Sanabria presents the following evidence: her supporting declaration; proof of residence at 4824 Hazeltine Avenue, Apartment 3, Sherman Oaks, CA 91423 prior to moving to Premises; text messages between defendant Claudia and Plaintiff in May of 2022, discussing her moving to the Premises; photographs documenting a domestic incident between Plaintiff and defendant Claudia on January 11, 2025 along with proof of therapy; text messages between Plaintiff and defendant Cassanova, demanding Casanova voluntarily leave the Premises; September of 2025 text messages between defendant Claudia and Plaintiff, requesting advance notice concerning when Plaintiff intended to put the Premises for sale; copy of text document and text messages concerning defendant Claudia seeking a referral to Stay Housed LA; November 12, 2024, text exchange between defendant Claudia and Plaintiff concerning Plaintiff withholding a vehicle in exchange for Claudia

sharing her location; and Claudia's text responses to Plaintiff's drug paraphernalia claims. (Declaration of Claudia Espino Sanabria, Exhs. A-H.)

Defendants Casanova Espino and Rebecca Espino present their supporting declarations.

ANALYSIS

A. Summary Judgment

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

(Aguilar v. Atl. Richfield Co.

(2001) 25 Cal.4th 826, 843.) "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The pleadings frame the issues

for motions "since it is those allegations to which the motion must respond." (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641, citation omitted; FPI Development, Inc. v.

Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) "On a motion

for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Id.)

In an unlawful detainer action, “A motion for summary judgment may be made at any time after the answer is filed upon giving five days notice. Summary judgment shall be granted or denied on the same basis as a motion under Section 437c.” (Code Civ. Proc., § 1170.7.) “[N]otice of a motion for summary judgment must be given in compliance with Code of Civil Procedure sections 1010.6 or 1013 and 1170.7.” (Cal. Rules of Court, rule 3.1351(a).) “Any opposition to the motion and any reply to an opposition may be made orally at the time of hearing or in writing[.]” (Cal. Rules of Court, rule 3.1351(b).) “If a party seeks to have a written opposition considered in advance of the hearing, the written opposition must be filed and served on or before the court day before the hearing.” (Cal. Rules of Court, rule 3.1351(c).) Section 437c’s separate statement of undisputed material facts requirement does not apply to summary judgment motions in unlawful detainer matters. (Code Civ. Proc., § 437c, subd. (s).)

B. The Complaint’s Allegations

Plaintiff owns real property located at 20329 Julia Lane, Santa Clarita, CA 91350 (the Premises), a single-family home. (Compl. ¶ 1.)

Defendants have resided at the Premises since September of 2022 and there is no written lease between the parties. (Compl. ¶ 8.) During the tenancy, Defendants engaged in illegal activity at the Premises, including the use, possession, and/or distribution of controlled substances, including cocaine. (Id. ¶ 10.) Defendants’ conduct created a nuisance on the Premises. On February 6, 2026, Plaintiff served each defendant with a Three-Day Notice to Quit (the Notice) the Premises within three business days of service of the Notice (February 11, 2026). (Id. ¶ 9, Exh. 1.) Claudia was served by personal delivery at the Premises. (Id., Exh. 2.) Casanova and Rebecca were served by delivering a copy to Claudia, who accepted service on their behalf. (Id., Exhs. 3, 4.) Plaintiff then mailed a copy of the Notice to Casanova and Rebecca at the Premises. The Notice informed Defendants that the use, possession, and

distribution of controlled substances at the Premises violates Civil Code section 3479 and Code of Civil Procedure section 1161(4), thereby creating and maintaining a nuisance at the Premises.
(Id., Exh. 1.)

According to Plaintiff, Defendants failed and refused to vacate and surrender possession of the Premises to Plaintiff by February 11, 2026, and continue in possession of the Premises without Plaintiff's permission or consent.
(Compl. ¶ 12.)

C. First Cause of Action: Unlawful Detainer due to Nuisance

To succeed on an unlawful detainer cause of action, a landlord must plead and prove: (1) the existence of a landlord-tenant relationship; (2) termination of that relationship through one of the statutorily enumerated grounds; (3) service of proper written notice; and (4) the tenant's continued possession of the premises without the landlord's consent after the notice period expires. (Code Civ. Proc., § 1161.)

1. Existence of a Landlord-Tenant Relationship

Under California law, a landlord-tenant relationship may be established through a written agreement, an oral agreement, an implied agreement arising from the conduct of the parties, or by operation of law. The undisputed evidence demonstrates no written lease existed between Plaintiff and Defendants and Defendants did not pay rent for living on the property.
(Declaration of Jorge Benito Lopez Valdez ¶ 5.) Thus, the court attempts to discern whether a landlord-tenant relationship existed by a tenancy at will.

"A tenancy at will is an estate which simply confers a right to the possession of premises leased for such indefinite period as both parties shall determine such possession shall continue. . . . The tenant at will is in possession by right with the consent of the landlord either express or implied, and he does not begin to hold unlawfully until the termination of his tenancy. [The tenant's] estate is a leasehold and [the tenant] holds in subordination to the title of the landlord. . . . A permissive occupation of real estate, where no rent is reserved or paid and no time agreed on to limit the occupation, is a

tenancy at will.” (Covina Manor, Inc.

v. Hatch (1955) 133 Cal.App.2d Supp. 790, 792-793, citations and quotations omitted.)

The undisputed evidence demonstrates a landlord-tenant relationship existed between Plaintiff and Defendants, pursuant to an oral agreement which created a tenancy at will.

Plaintiff has owned the Property since February of 2018. (Valdez Decl., Exh. 1: Grant Deed.) On February 22, 2012, the Los Angeles County Department of Public Works issued Plaintiff a Certificate of Occupancy for the property. (Valdez Decl., Exh. 2.)

Plaintiff and defendant Claudia share two children: Bianca and Gigi. (Declaration of Claudia Espino Sanabria ¶¶ 3-4; Valdez Decl. ¶ 6.) Defendant Claudia also has two adult children: defendant Casanova and defendant Rebecca. (Valdez Decl. ¶ 1.) In June of 2022, Plaintiff asked and encouraged defendant Claudia to leave her former apartment and move to the Premises in order to establish a home together and raise their family. (Espino Sanabria Decl. ¶ 2.) Plaintiff lived at the Property with Defendants, Bianca, and Gigi from September 2022 through October 2024. (Valdez Decl. ¶ 4; Espino Sanabria ¶ 3 [Gigi was born in 2023].) Defendant Claudia presents a text message demonstrating she and her co-defendants moved onto the Premises in June of 2022. (Espino Sanabria Decl. ¶ 2, Exh. B.) Plaintiff moved out of the Premises in October of 2024, but Defendants were allowed to remain there rent-free. (Valdez Decl. ¶¶ 4-5.)

Defendant Casanova understood defendant Claudia moved the family into the Property after Plaintiff asked her to do so in order to live together as a family. (Declaration of Casanova Espino ¶ 2.) After a domestic incident that occurred between Plaintiff and defendant Claudia on January 11, 2025, Plaintiff demanded that defendant Casanova move out of the Property. (Casanova Espino Decl. ¶¶ 3, 6.) Casanova claims he moved out in October 2025 and lived elsewhere for eight months. (Casanova Espino Decl. ¶ 7; Sanabria Espino Decl. ¶ 6.) Casanova returned to the Property to reside there in late June of 2026. (Casanova

Espino Decl. ¶ 7.) This contradicts

Casanova's later statement that he was residing at the Property at the time this matter was filed and contradicts his Answer, which states he vacated the Property on January 17, 2026. (Casanova

Espino Decl. ¶ 7; Valdez Decl. ¶ 9; Answer at p. 3, § 4(a).) If a tenant vacates the premises and surrenders possession to the landlord prior to the complaint being filed, no action for unlawful detainer will lie, even if the premises were not surrendered during the three-day notice period.

(Briggs v. Elec. Memories & Magnetics Corp. (1975) 53

Cal.App.3d 900, 904-905, fn. 3.) Thus, a

triable dispute exists concerning whether a landlord-tenant relationship existed between defendant Casanova and Plaintiff at the time the alleged illegal conduct occurred, the Three-Day Notice to Quit was served, and when this action was filed.

Defendant Rebecca states she vacated the Premises on

April 1, 2026, and currently resides with her father. (Declaration of Rebecca Espino ¶ 3.)

Therefore, the undisputed evidence demonstrates a

landlord-tenant relationship existed between defendants Claudia and Rebecca at the time of the "drug paraphernalia" discovery, the time the Three-Day Notice was served, and at the time this action was filed.

Plaintiff fails to demonstrate a landlord-tenant

relationship existed between him and defendant Casanova at the time of the "drug paraphernalia" discovery, the time the Three-Day Notice was served, and at the time this action was filed.

2. Termination of the Landlord-Tenant Relationship

Plaintiff brought this action pursuant to Code of Civil Procedure section 1161, subdivision (4).

Pursuant to Section 1161, subdivision (4), a tenant who maintains, commits, or permits the maintenance or commission of a nuisance upon the demised premises terminates the lease. "Any tenant . . . maintaining, committing, or permitting the maintenance or commission of a nuisance upon the demised premises or using the premises for an unlawful purpose, thereby terminates the lease, and the landlord . . . shall upon service of three days'

notice to quit upon the person or persons in possession, be entitled to restitution of possession of the demised premises under this chapter.” (Code Civ. Proc., § 1161(4).) Section 1161(4) defines nuisance to include a person who commits or maintains a public nuisance as described in Civil Code section 3482.8 (dogfighting or cockfighting), or who commits an offense described in Civil Code section 3485, subdivision (c) or section 3486, subdivision (c) (controlled substance offenses), or who uses the premises to further the purpose of such an offense. Courts apply a high standard to terminate a lease for nuisance. Although a single act may technically constitute a nuisance, courts are unlikely to grant relief to a landlord in an unlawful detainer action for a tenant’s single act, especially if it is curable. (Elmassian v. Flores (2021) 69 Cal.App.5th Supp. 1.)

Here, Plaintiff claims Defendants created and maintained a nuisance pursuant to Civil Code section 3479.

“Anything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.” (Civ. Code, § 3479.) “[E]very person who possesses (1) any controlled substance . . . specified in subdivision (b) or (c) of Section 11055 . . . shall be punished by imprisonment in a county jail for not more than one year[.]” (Health & Saf. Code, § 11350, subd. (a).) Cocaine is a Schedule II controlled substance. (Health & Saf. Code, § 11055, subd. (b)(6).)

Civil Code section 3486, subdivision (c) states

“‘[C]ontrolled substance purpose’ means the manufacture, cultivation, importation into the state, transportation, possession, possession for sale, sale, furnishing, administering, or giving away, or providing a place to use or fortification of a place involving, cocaine . . . , in a violation of subdivision (a) of Section 11350[.]”

On January 7, 2026, Plaintiff went to the Premises to pick up his daughters, Bianca and Georgina. (Valdez Decl. ¶ 6.) When

Plaintiff arrived, the children were on the Premises with defendant Rebecca who told Plaintiff defendant Claudia had left and had not returned since the prior day. In one of the bedrooms, Plaintiff saw a vial and tiny baggies containing a white powdery substance. According to Plaintiff, defendant Claudia has used cocaine before and he knew the white powdery substance in the bedroom was cocaine because he had seen the substance and these types of drug paraphernalia, including the vial and baggies, before. Plaintiff presents screenshots of cellphone photographs he took of the drug paraphernalia on January 7, 2026 as well as text messages. (Id., Exh.

3.) The photos show a text exchange between Plaintiff and Claudia with a photo of Plaintiff holding a clear vial over a dark marble background and a photo showing empty small plastic bags and one small plastic bag of a white powdery substance.

(Id., Exh. 3 at p. 1.) In response to the images, Claudia texted back "That's old" and "I didn't have cocaine." (Id.) However, later in the text chain, Claudia states "That's not all mine," "And it's old," and "It was on top of the closet not within reach." (Id., Exh. 3 at p. 2.) The court infers from this that defendant Claudia admits the photographed items were drug paraphernalia of some sort.

Defendant Claudia disputes Plaintiff's "illegal drugs" allegations. (Sanabria Espino Decl. ¶

8.) According to Claudia, she was not on the Premises when the supposed drug paraphernalia items were found. Plaintiff went into her bedroom without her knowledge or permission and later sent her the photographs of the items and the results of a home drug test. Claudia denied the allegations in her text message responses and admits she told Plaintiff the items were old. Plaintiff does not dispute the items are drug paraphernalia and include cocaine. (Espino Sanabria Decl. ¶ 8, Exh. H.) Claudia does not know what Plaintiff tested or how the test was handled after it was removed from her bedroom. Nor is Claudia aware of any law enforcement investigation, criminal charges, or official laboratory testing confirming Plaintiff's allegations. (Id.)

After reviewing the declarations and supporting evidence, the court finds the undisputed evidence demonstrates that defendant Claudia was in possession of cocaine and other drug paraphernalia on the Premises on January 7, 2026. As such, Plaintiff has

established the existence of a public nuisance pursuant to Health and Safety Code section 3486, subdivision (c).

Plaintiff's unauthorized entry into defendant Claudia's bedroom without notice or consent constitutes a separate violation of Civil Code section 1954, exposing Plaintiff to civil liability and statutory penalties. Civil Code section 1954 limits landlord entry to: (1) emergency, (2) necessary/agreed repairs or to show unit, (3) abandonment, (4) court order, and (5) specific Health & Safety Code compliance. (Civ. Code, § 1954, subd. (a).) Except in cases of an emergency or when the tenant has abandoned or surrendered the property, the landlord must provide the tenant with a 24-hour written notice of their intent to enter the unit during normal business hours. (Civ. Code, § 1954, subd. (d).) "The landlord may not abuse the right of access or use it to harass the tenant." (Civ. Code, § 1954, subd. (c).) Moreover, it is unlawful for a landlord to commit a significant and intentional violation of Section 1954 in order to influence the tenant to vacate the premises. (Civ. Code, § 1940.2, subd (a)(4).) However, Section 1940.2 does not enlarge or diminish a landlord's right to terminate a tenancy pursuant to existing state or local law. (Civ. Code, § 1940.2, subd. (d).)

At some point in 2025, Plaintiff and defendant Claudia's relationship ended, and Claudia presents evidence showing the relationship involved domestic abuse (restricting travel and domestic violence against Claudia by Plaintiff). (Espino Sanabria Decl. ¶¶ 5, 7, 9.) However, Claudia does not present an opposition arguing or demonstrating Plaintiff intentionally and unlawfully entered her bedroom in order to harass her into vacating the Premises.

Although defendants may raise Plaintiff's unauthorized entry as part of a retaliatory eviction defense or as grounds for a separate civil action, each defendant's Answer generally alleges retaliation for defendants' asserting their legal rights without stating more. (Answers at p. 10 [Attachment 3t].) Moreover, the Fourth Amendment's "exclusionary rule" is not applied in civil actions, absent a statutory authorization, unless the civil proceedings are "so closely identified with the aims of criminal prosecution as to be deemed 'quasi-criminal.'" (See Dep't of Transportation v. State

Personnel Board (2009) 178 Cal.App.4th 568, 576.) Defendants have made no such showing here.

Therefore, Plaintiff has established the tenancy at will was terminated as to defendant Claudia.

However, Plaintiff fails to demonstrate termination as to defendants Rebecca and Casanova. The evidence does not establish that Rebecca and Casanova knew about the drug paraphernalia, had any reason to know, or had any ability to control Claudia's conduct in her private bedroom. This evidentiary gap is fatal as defendants Rebecca's and Casanova's lack of knowledge undermines the statutory requirement that the tenant "maintain, commit, or permit" a nuisance.

Plaintiff cites City of S. San Francisco Housing Authority v. Guillory (1995) for the contention that co-tenants may be evicted for illegal drug possession even without knowledge. (41 Cal.App.4th Supp. 13.) There, the co-tenants were the offending party's parents who were evicted because they had notice of a lease provision barring drug-related activity and failed to assure that no drug-related criminal activity occurred on the federally subsidized premises. (Id. at pp. 19-20.) The appellate division of the Superior Court upheld the eviction of the co-tenant parents from federally subsidized housing even though the parties stipulated that the tenants had no knowledge of their son's drug activity. However, that case was decided under federal law (42 U.S.C. § 1437d(l)(5)), which imposes a strict liability standard on all household members for drug-related criminal activity in public housing. Plaintiff cites no case law finding the same as to Section 1161, subdivision (4).

Here, Plaintiff makes no such showing that Rebecca or Casanova reasonably would have known about the drug paraphernalia in Claudia's bedroom. If both defendants did not know about drug paraphernalia found in their mother's room, it is unclear how they contributed to maintaining, committing, or permitting the nuisance. Because Plaintiff fails to demonstrate Rebecca and Casanova "maintained, committed, or permitted" a nuisance on the Premises, Plaintiff cannot state an unlawful detainer claim against defendants Rebecca and Casanova pursuant to Code of Civil Procedure section 1164, subdivision (4).

3. Written Notice

“Strict compliance with the statutory notice requirements is a prerequisite to filing an unlawful detainer action.” (DHI Cherry Glen Associates, L.P. v. Gutierrez (2019) 46 Cal.App.5th Supp. 1, 9.) In actions based on Section 1161, subdivision (4), the landlord must serve a three-day notice to quit on the person or persons in possession of the premises. (Code Civ. Proc., § 1161, subd. (4).) The notice is only valid and enforceable if the landlord complies with specific notice conditions. Notice must be served pursuant to Code of Civil Procedure section 1162, which permits personal service, substituted service, or posting and mailing. (Code Civ. Proc., § 1162, subd. (a)(1)-(3).) “Failure to provide a legally sufficient notice is a complete defense to an unlawful detainer.” (DHI Cherry Glen Associates, L.P. v. Gutierrez (2019) 46 Cal.App.5th Supp. 1, 8.)

The Three-Day Notice to Quit was personally served on defendant Claudia on February 6, 2026, at 9:58 a.m. at the Premises. (Khalili Decl., Exh. 7 at p. 2.)

A three-day notice to quit under Section 1161, subdivision (4) must state: (1) state the violation, (2) state the violated statutory provision, and (3) the deadline for vacating the premises and surrendering possession. (See Elmassian v. Flores (2021) 69 Cal.App.5th Supp. 1, 8-10; see also Code Civ. Proc., § 1161, subd. (2).)

Here, the Three-Day Notice to Quit stated in relevant part:

NOTICE IS

HEREBY GIVEN to Claudio Espino Sanabria aka Claudia Marina Sanabria Espino, Casanova Espino, and Rebeca Espino (individually and collectively, “You”), by Jorge Benito Lopez Valdez (“Landlord”), that Your use and possession of the premises located at 20329 Julia Lane, Santa Clarita, California 91350 (the “Premises”) are in violation of California law, including, among other things, California Civil Code Section 3479 and California Code of Civil Procedure Section 1161(4), because of Your use, possession, and/or distribution of controlled substances at the Premises and/or other illegal activity involving controlled substances at the Premises, and the nuisance You have created and maintained at the Premises as a result.

WITHIN

THREE DAYS after service of this 3-Day Notice to Quit

("Notice"), excluding Saturdays, Sundays and judicial holidays, You are required to vacate and deliver up possession of the Premises to Landlord. If You fail to quit possession of the Premises within three (3) days after service of this Notice (excluding Saturdays, Sundays and judicial holidays), legal proceedings will be instituted for possession of the Premises. Landlord does not waive the right to recover damages as provided by law, including, without limitation, rent due, late charges and interest, as applicable.

You are

hereby notified that Landlord has elected to and hereby does declare any lease between the Landlord and You or any of You forfeited.

This

Notice is not intended to be, nor should it be construed as, a waiver of any right, remedy, or position of Landlord, all of which are expressly reserved.

(Khalili Decl., Exh. 6.)

Although Plaintiff did not state specific facts (finding drug paraphernalia), Section 1161, subdivision (4) does not require such specificity. (Compare Code Civ. Proc., § 1161, subds. (1)-(2), with subd. (4).)

Therefore, the undisputed evidence demonstrates Plaintiff properly served defendant Claudia with a code-compliant Notice to Quit.

4. Tenant's

continued possession of the premises without the landlord's consent after the notice period expires

Defendant Claudia admits she remains in possession of the Premises. (Espino Sanabria Decl. ¶ 14.)

Therefore, Plaintiff has established an unlawful detainer claim against defendant Claudia.

C.

Defendant Claudia's Affirmative Defenses

In her Answer, defendant Claudia "denies all other allegations of the complaint[.]" (3/11/2026 Answer at p. 1, § 2(b)(1)(b).) Defendant Claudia also raises various defects and defenses to the Complaint.

First, Claudia claims she did not receive Plaintiff's Mandatory Cover Sheet and Supplemental Allegations from UD-101, which must be filed according to Code of Civil Procedure section 1179.01.5, subdivision (c). (3/11/2026 Answer at p. 1, § 2(b)(2)(a).) However, Section 1179.01.5 was repealed by statute as of October 1, 2025.

Claudia next asserts Plaintiff served the Notice to Quit and filed the Complaint to retaliate against her. (3/11/2026 Answer at p. 2, § 3(f).) As stated above, Claudia fails to provide a written opposition supporting this argument with evidence and legal authority.

Claudia claims "By serving defendant with the notice to quit or filing the complaint, plaintiff is arbitrarily discriminating against the defendant in violation of the Constitution or the laws of the United States or California." (3/11/2026 Answer at p. 2, § 3(g).) As stated above, Claudia fails to provide a written opposition with sound legal arguments to support this contention. Nor do the opposing declarations provide an argument demonstrating any form of discrimination.

Claudia claims "Plaintiff's demand for possession is subject to the Tenant Protection Act of 2019, Civil Code section 1946.2 or 1947.12, and is not in compliance with the act. [and] Plaintiff violated the Tenant Protection Act in another manner that defeats the complaint." (3/11/2026 Answer at p. 2, § 3(i)(5).) Section 1946.2 does not apply to the Premises because Plaintiff was issued a Certificate of Occupancy of the property within the previous 15 years. (Valdez Decl., Exh. 2 [listing issue date of February 22, 2012]; Civ. Code, § 1946.2, subd. (e)(5)(B)(7).) Section 1947.12 does not apply because no rent was charged for the Premises.

Claudia claims "Plaintiff seeks to evict defendant based on defendant or another person calling the police or emergency assistance (e.g., ambulance) by or on behalf of a victim of abuse, a victim of crime, or an individual in an emergency when defendant or the other person believed that

assistance was necessary.” (3/11/2026

Answer at p. 2, § 3(l).) Although

Claudia presents evidence that Plaintiff demanded defendant Casanova leave the Premises after he called the police in response to the January 11, 2025, domestic assault incident, that incident occurred one year before Plaintiff discovered the drug paraphernalia, served the Three-Day Notice, and filed this action. (Espino Sanabria Decl. ¶¶ 5-6, Exhs. C, D.) Moreover, Claudia fails to present an opposing brief with a supporting argument.

Claudia asserts Plaintiff breached the warranty of habitability by providing inadequate security and locks. (3/11/2026 Answer, Attachment 2b(1)(b)/3t at p. 1.) Claudia presents no evidence supporting this assertion.

Claudia next asserts Plaintiff failed to provide her with written notice of her rights under the Tenant Protection Act of 2019 as required by Civil Code section 1946.2, subdivision (f) and did not provide Claudia with written notice of the exemption.

(3/11/2026 Answer, Attachment 2b(1)(b)/3t at p. 1.) As stated above, Plaintiff is exempted from the requirements in Section 1946.2 because Plaintiff was issued a Certificate of Occupancy of the property within the previous 15 years. (Valdez Decl., Exh. 2 [listing issue date of February 22, 2012]; Civ. Code, § 1946.2, subd. (e)(5)(B)(7).) Moreover, because Plaintiff is not subject to Section 1946.2, Plaintiff was not required to provide Claudia with written notice of the exemption. (Civ. Code, § 1946.2, subd. (f).) As with Claudia’s previous defenses, she fails to include an opposing brief addressing this affirmative defense.

Claudia asserts Plaintiff seeks to terminate the tenancy by arbitrarily and unlawfully discriminating against Claudia based on “Marital status” and “Other.” (3/11/2026 Answer, Attachment 2b(1)(b)/3t at p. 6.) Claudia presents no arguments, legal authority, or evidence supporting this affirmative defense.

Ninth, Claudia asserts Plaintiff served the Notice to Quit and filed this action to retaliate against her for engaging in protected behavior: asserting her legal rights. (3/11/2026 Answer, Attachment 2b(1)(b)/3t at p. 6.) Other than defendant Casanova’s phone call on

January 11, 2025, Claudia presents no arguments, legal authority, or evidence demonstrating Plaintiff filed this action to retaliate against her.

The court has already found the evidence demonstrates a landlord-tenant relationship exists between Plaintiff and defendant Claudia. As such, defendant Claudia's "Ownership and Standing" affirmative defense fails. (3/11/2026 Answer, Attachment 2b(1)(b)/3t at p. 10.)

Lastly, Claudia states she does not have another residence available for herself, her four children or her dog due to financial difficulties. (Espino Sanabria Decl. ¶ 14.) Claudia claims relocating requires first month's rent, a security deposit, moving expenses, storage costs, utility deposits, and other relocation expenses that she cannot afford on short notice. (Espino Sanabria Decl. ¶ 14.) In June of 2026, Claudia filed for child support from Plaintiff and has yet to receive any payments from him. (Id. ¶ 11.) Until she purchased her current vehicle with her tax refund, Claudia had very limited reliable transportation which made it difficult for her to work, search for housing, transport her children, and attend necessary appointments. (Id. ¶ 12.) Claudia does not state when she purchased her current vehicle. Claudia requests a three to six-month continuance to allow her sufficient time to stabilize her income, receive child support, secure housing, and relocate her family. (Id. at pp. 4:25-5:1.) Claudia also asks the court to award relocation assistance in the amount of \$20,000. (Id. ¶ 15.) Claudia cites no legal basis for this request.

Claudia says she recently began working in real estate (Espino Sanabria Decl. ¶ 10), but Plaintiff presents evidence from the California Department of Real Estate which demonstrates Claudia has been a licensed realtor and salesperson since December 13, 2018. (Valdez Decl. ¶ 11, Exh. 5.) Moreover, Claudia presents text messages which demonstrate she knew Plaintiff intended to eventually put the Premises for sale. (Espino Sanabria Decl. ¶ 9, Exh. E [texts from September 8, 2025].) In September of 2025, Claudia asked Plaintiff to let her know so that she could prepare financially. (Id. ¶ 9.) Thus, Claudia had at least four months before Plaintiff discovered the drugs to begin preparing financially for a move.

Despite defendant Claudia's claims in her declaration and supporting exhibits, Claudia has failed to present an opposing brief with legally sound arguments which are supported by legal authority. Absent a good faith basis for modifying or extending an existing law, litigants are generally prohibited from asserting a position in litigation without authority. (See, e.g. *In re Estate of Randall* (1924) 194 Cal. 725, 728-729 ["Contentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned."]; see also *Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Atchley v. City of Fresno* (1984) 151 Cal. App. 3d 635, 647 ["Where a point is merely asserted by appellant's counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court."].)

Self-represented parties are held to the same standard as attorneys. (*Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811, citation omitted ["[A] self-represented litigant who is not indigent 'must expect and receive the same treatment as if represented by an attorney—no different, no better, no worse.'"].)

Therefore, the court grants summary judgment on the unlawful detainer complaint for plaintiff Jorge Benito Lopez Valdez against defendant Claudia Espino Sanabria.

The court denies the motion as to defendants Rebecca Espino and Casanova Espino.

CONCLUSION and ORDER

Motion for summary judgment on the Complaint is granted in part for Plaintiff against defendant Claudia Espino Sanabria and denied in part as to defendants Rebecca Espino and Casanova Espino.

Plaintiff Jorge Benito Lopez Valdez to give notice.

[1] To reduce confusion, the court refers to each defendant by their first name.